

Montana Real Estate Power of Attorney

Pursuant to Section 72-31-353

I, _____ [Full Name], of _____
[Street Address] in the City of _____, State of _____
(the "Principal") hereby appoint _____ [Full Name], of _____
_____ [Street Address] in the City of _____,
State of _____ (the "Agent") to act on my behalf for the purpose set forth
in Article 1 below (**Initial** and **Check** the Applicable Types):

ARTICLE 1. ASSIGNMENT OF AUTHORITY

_____ ☐ - **Management of Real Estate:** My agent is authorized to act on my
behalf for the purpose of managing the premises located at _____
_____ and with a legal description of _____
_____. My agent is authorized to perform all
acts related to maintaining the property such as but not limited to: making repairs
(with reimbursement), approving sub-contractors for work, negotiating rents,
signing lease/sublease agreements, evicting tenants and any other representation
as needed for day-to-day management.

_____ ☐ - **Refinancing:** My agent is authorized to act in my behalf for the
purpose of refinancing my debts, including, but not limited to any debts secured by
a mortgage on the lands and premises located at _____
_____ and with a legal description of _____
_____. My agent is authorized to perform any and all acts
related to such refinancing, including but not limited to, modifying, executing and
delivering any and all documents necessary to complete the refinancing as well as
to withdraw and disburse funds necessary to complete the refinancing from my
account which I have previously disclosed to my agent.

_____ ☐ - **Sale of Real Estate:** My agent is authorized to act in my behalf for the
purpose of selling the lands and premises located at _____
_____ and with a legal description of _____
_____. My agent is authorized to perform any and all
acts related to such sale, including, but not limited to, executing, modifying and
delivering any and all documents necessary to complete the transaction as well as
accepting the closing proceeds for deposit into my account which has been
previously disclosed to my agent.

_____ ☐ - **Purchase of Real Estate:** My agent is authorized to act in my behalf
for the purpose of purchasing the lands and premises located at _____
_____ and with a legal description of _____

_____. My agent is authorized to perform any and all acts related to such purchase, including, but not limited to the financing and mortgaging of the property. My agent is authorized to execute, modify and deliver any documents necessary to complete the financing and purchase of the property as well as to withdraw and disburse funds necessary for the closing from my account which I have previously disclosed to my agent.

ARTICLE 2. DURABLE POWER OF ATTORNEY

This power of attorney shall not be affected by the Principal's subsequent disability or incapacity unless otherwise stated in Article 3(b).

ARTICLE 3. TERM

(**Initial** and **Check** the Applicable Term):

- a. _____ ☐ - This power of attorney is effective as of the date hereof and shall terminate upon revocation or automatically on the _____ day of _____, 20____.
- b. _____ ☐ - (**Non-Durable Option**) This power of attorney is effective as of the date hereof and shall terminate upon my incapacity, or death, or revocation.
- c. _____ ☐ - This power of attorney is effective as of the date hereof and shall terminate upon my death or revocation.

ARTICLE 4. RATIFICATION

I, the Principal, grant to my Agent full power and authority to perform all acts on my behalf as I could do if personally present, hereby ratifying and confirming all that my Agent may do pursuant to this power.

ARTICLE 5. GOVERNING LAW

This Note shall be governed by, and construed in accordance with, the laws of the State of Montana.

ARTICLE 6. REVOCATION

I, the Principal, hereby revoke any existing powers of attorney that may have previously been granted by me relative to the above-described property.

In witness whereof, I have executed this instrument this _____ day of _____, 20____.

Principal's Signature: _____

Printed Name: _____

Agent's Signature: _____

Printed Name: _____

NOTARY ACKNOWLEDGMENT

STATE OF _____

_____ County, ss.

On this _____ day of _____, 20____, before me appeared _____, as the Principal who proved to me through government issued photo identification to be the above-named person, in my presence executed foregoing instrument and acknowledged that (s)he executed the same as his/her free act and deed.

Notary Public

Printed Name: _____

My commission expires: _____

Acceptance by Agent

The undersigned Agent acknowledges and executes this Power of Attorney, and by such execution does hereby affirm that I: (A) accept the appointment as agent; (B) understand the duties under the Power of Attorney and under the law.

Agent's Signature: _____

Printed Name: _____